



EMPLOYMENT TRIBUNALS

Claimant: Ms D Beresford
Respondent: Sunflower Spalding Cash and Carry Limited (in Creditors' Voluntary Liquidation)

Heard at: Tribunals Hearing Centre, 50 Carrington Street, Nottingham, NG1 7FG

By video

On: 25 September 2025

Before: Employment Judge Adkinson sitting alone

Appearances

For the claimant: In person

For the respondent: Did not attend

JUDGMENT

UPON hearing from the claimant in person

UPON the respondent not attending and indicating that it would not attend, would not defend the case but did not concede the claimant was unfairly dismissed

UPON considering the evidence presented by the claimant

UPON the respondent not filing any evidence in support of its response and therefore failing to prove a potentially fair reason for dismissal

AND UPON concluding that the respondent had significantly failed to follow Acas Code of Practice Number 1 such that it was just and equitable to uplift any compensatory award by 20%

IT IS THE TRIBUNAL'S JUDGMENT THAT

1. The respondent unfairly dismissed the claimant
2. The respondent must pay to the claimant a basic award of £15,400
3. The respondent must pay to the claimant a compensatory award of £15,987.05 calculated as
 - 3.1. For loss of statutory rights the sum of £500, and
 - 3.2. For loss of earnings £15,487.05.

4. The respondent must pay to the claimant an additional amount of £3,197.41, being a 20% uplift to reflect the failure to comply with a relevant Acas Code of Practice.

Approved by:

Employment Judge Adkinson

Dated: 25 September 2025

Sent to the parties on

...05 November 2025.....

For the Employment Tribunal

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Notes

Reasons for the judgment or order having been given orally at the hearing, written reasons will not be provided unless a request was made by either party at the hearing or a written request is presented by either party within 14 days of the sending of this written record of the decision.

Public access to employment tribunal decisions

All judgments (apart from withdrawal judgments) and written reasons for the judgments (if provided) are published, in full, online at www.gov.uk/employment-tribunal-decisions shortly after a copy has been sent to the parties in a case.

Appeals

You can appeal to the Employment Appeal Tribunal if you think a legal mistake was made in an Employment Tribunal decision. There is more information here: <https://www.gov.uk/appeal-employment-appeal-tribunal>.

Recordings

If a Tribunal hearing has been recorded, you may request a transcript of the recording upon payment of any fee due. If a transcript is produced it will not include any oral judgment or reasons given at the hearing. The transcript will not be checked, approved or verified by a judge. There is more information in the joint Presidential Practice Direction on the Recording and Transcription of Hearings. You can access the Direction and the accompanying Guidance here: <https://www.judiciary.uk/guidance-and-resources/employment-rules-and-legislation-practice-directions/>.